5. He/she nominates one-sixth of the members of the state legislative council from amongst persons having special knowledge or practical experience in literature, science, art, cooperative movement and social service.

6. He/she nominated (before 2020) one member to the State Legislative Assembly from the Anglo-Indian community. However, the 104th Constitutional Amendment Act of 2019 has discontinued this provision.

7. He/she decides on the question of disqualification of members of the state legislature in consultation with the Election Commission.

8. When a bill is sent to the governor after it is passed by state legislature, he/she can:

(a) Give his/her assent to the bill, or

(b) Withhold his/her assent to the bill, or

(c) Return the bill (if it is not a money bill) for reconsideration of the state legislature. However, if the bill is passed again by the state legislature with or without amendments, the governor has to give his/her assent to the bill, or

(d) Reserve the bill for the consideration of the President. In one case such reservation is obligatory, that is, where the bill passed by the state legislature endangers the position of the state high court. In addition, as identified by Soli Sorabji, the former Attorney-General of India, the governor can also reserve the bill if it is of the following nature:[4]

(i) *Ultra-vires,* that is, against the provisions of the Constitution.

(ii) Opposed to the Directive Principles of State Policy.

(iii) Against the larger interest of the country.

(iv) Of grave national importance.

(v) Dealing with compulsory acquisition of property under Article 31A of the Constitution.

9. He/she can promulgate ordinances when the state legislature is not in session. These ordinances must be approved by the state legislature within six weeks from its reassembly. He/she can also withdraw an ordinance anytime. This is the most important legislative power of the governor.

The Supreme Court's judgement relating to the ordinance-making power of the Governor in the *D.C. Wadhwa case*[4a] (1986) is worth mentioning here. In that case, the court pointed out that between 1967–1981, the Governor of Bihar promulgated 256 ordinances and all these were kept in force for periods ranging from one to fourteen years by repromulgation from time to time. The court ruled that successive repromulgation of ordinances with the same text without any attempt to get the bills passed by the Assembly would amount to violation of the constitution and the ordinance so repromulgated is liable to be struck down. It held that the exceptional power of law-making through ordinance cannot be used as a substitute for the legislative power of the state legislature.